FILED
3/29/2024
STATE BAR COURT
CLERK'S OFFICE
LOS ANGELES

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**Public Matter**

THE STATE BAR COURT

HEARING DEPARTMENT - LOS ANGELES

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|---|---|
| In the Matter of: | Case No. SBC-24-O-30089 |
| FAHED SAYEGH, State Bar No. 230297, | NOTICE OF DISCIPLINARY CHARGES |
| | (OCTC Case Nos. 22-O-15343; 23-O-27352) |
| An Attorney of the State Bar. | |

**NOTICE - FAILURE TO RESPOND!**

**IF YOU FAIL TO FILE A WRITTEN ANSWER TO THIS NOTICE WITHIN 20 DAYS AFTER SERVICE, OR IF YOU FAIL TO APPEAR AT THE STATE BAR COURT TRIAL:**

**(1) YOUR DEFAULT WILL BE ENTERED;**
**(2) YOUR STATUS WILL BE CHANGED TO INACTIVE AND YOU WILL NOT BE PERMITTED TO PRACTICE LAW;**
**(3) YOU WILL NOT BE PERMITTED TO PARTICIPATE FURTHER IN THESE PROCEEDINGS UNLESS YOU MAKE A TIMELY MOTION AND THE DEFAULT IS SET ASIDE, AND;**
**(4) YOU SHALL BE SUBJECT TO ADDITIONAL DISCIPLINE. SPECIFICALLY, IF YOU FAIL TO TIMELY MOVE TO SET ASIDE OR VACATE YOUR DEFAULT, THIS COURT WILL ENTER AN ORDER RECOMMENDING YOUR DISBARMENT AND MAY RECOMMEND THE IMPOSITION OF MONETARY SANCTIONS WITHOUT FURTHER HEARING OR PROCEEDING. (SEE RULES PROC. OF STATE BAR, RULES 5.80 ET SEQ. & 5.137.)**

The State Bar of California alleges:

JURISDICTION

1. Fahed Sayegh ("respondent") was admitted to the practice of law in the State of California on April 8, 2004. Respondent was a licensed attorney at all times pertinent to these charges, and is currently a licensed attorney of the State Bar of California.

Background Facts – Case No. 22-O-15343

2. On or about December 15, 2021, Michele Bidinger was arrested for driving under the influence of alcohol ("DUI").

3. On or about December 16, 2021, after being referred to Ms. Bidinger by another attorney, respondent contacted Ms. Bidinger via text message to introduce himself.

4. On or about December 20, 2021, respondent and Ms. Bidinger formed an attorney-client relationship, and respondent expressly agreed in writing that he would submit a request to the Department of Motor Vehicles ("DMV") to stay the automatic suspension of her driver's license, request discovery, and prepare for and conduct the hearing, even though the parties had not yet signed a retainer agreement and Ms. Bidinger had not formally paid respondent for his services.

5. On or about January 18, 2022, Ms. Bidinger texted to respondent a letter from the Culver City Police Department, which advised Ms. Bidinger that her first criminal court appearance on her DUI arrest was set for February 15, 2022. Ms. Bidinger advised respondent that she would not be able to appear on the first appearance date. Respondent replied to Ms. Bidinger that he would be able to make all court appearances without Ms. Bidinger being present.

6. After respondent sent Ms. Bidinger a formal retainer agreement, on or about January 27, 2022, Ms. Bidinger signed the retainer agreement.

7. On or about February 4, 2022, Ms. Bidinger paid to respondent, via Zelle, $3,000 per the retainer agreement terms.

COUNT ONE

Case No. 22-O-15343
Rules of Professional Conduct, rule 1.1(a)
[Failure to Perform with Competence]

8. Paragraphs 2 through 7 above are incorporated by reference.

9. Respondent knew that he had by December 25, 2021 (10 days from December 15, 2021) to request a stay from the DMV of an automatic license suspension to Ms. Bidinger's license as a result of the DUI arrest.

10. Between on or about December 20, 2021 and on or about June 28, 2022, respondent intentionally, recklessly, with gross negligence, and repeatedly failed to perform legal services on behalf of Ms. Bidinger with competence, in willful violation of Rules of Professional Conduct, rule 1.1(a), by the following:

a. Failing to request a stay of the automatic suspension of Ms. Bidinger's driver's license by December 25, 2021, 10 days after Ms. Bidinger's DUI arrest;

b. Failing to ever request discovery from the DMV regarding Ms. Bidinger's DUI arrest;

c. Failing to timely request an Administrative Per Se hearing with the DMV after Ms. Bidinger received the Order of Suspension dated January 3, 2022 from the DMV and provided it to respondent that same date;

d. Advising Ms. Bidinger that the automatic DMV suspension of her driver's license should only be 90 days based on a first time DUI, when in fact, a first time DUI license suspension lasts four months, and because it was alleged that Ms. Bidinger refused to take a chemical test after being arrested, the suspension would be one-year long.

COUNT TWO

Case No. 22-O-15343
Rules of Professional Conduct, rule 1.1(a)
[Failure to Perform with Competence]

11. Paragraphs 2 through 7 above are incorporated by reference.

12. Between on or about December 20, 2021 and on or around June 2022, respondent intentionally, recklessly, with gross negligence, and repeatedly failed to perform legal services on behalf of Ms. Bidinger with competence, in willful violation of Rules of Professional Conduct, rule 1.1(a), by the following:

e. Failing to perform any services on Ms. Bidinger's criminal DUI matter; and

f. Failing to attend Ms. Bidinger's criminal court arraignment appearance on February 15, 2022, which led to the issuance of a bench warrant for her arrest.

COUNT THREE

Case No. 22-O-15343
Rules of Professional Conduct, rule 1.15(a)
[Failure to Deposit Client Funds in Trust Account]

13. Paragraphs 2 through 7 above are incorporated by reference.

14. On or about February 4, 2022, respondent received from respondent's client, Michaele Bidinger, $3,000 as a fixed fee for legal services to be performed by respondent. Even assuming this was a flat fee paid in advance for legal services, respondent never obtained from Ms. Bidinger her written agreement, after written disclosures as required by Rules of Professional Conduct, rule 1.15(b), for the fee to be deposited in respondent's operating account. Respondent failed to deposit the $3,000 in funds received from the client in a bank account labeled "Trust Account", "Client's Funds Account" or words of similar import, in willful violation of the Rules of Professional Conduct, rule 1.15(a).

COUNT FOUR

Case No. 22-O-15343
Business and Professions Code section 6106
[Moral Turpitude - Misrepresentations]

15. Paragraphs 2 through 7 and 14 above are incorporated by reference.

16. On or about May 18, 2022, respondent stated to Michele Bidinger in writing: (1) that a criminal case had not been filed against her, and (2) that he went to court three times to check on the status of the filing and that it had not been filed by the arraignment date. At the time that respondent made these statements, he knew that they were false and misleading because a

criminal case had been filed against Ms. Bidinger on January 27, 2022, approximately 18 days before the initial February 15, 2022, arraignment date, and because respondent never went to court at any time on Ms. Bidinger's behalf. By making these false and misleading statements to his client, respondent committed acts involving moral turpitude, dishonesty, and corruption in willful violation of Business and Professions Code section 6106.

17. A violation of section 6106 may result from intentional conduct or grossly negligent conduct. Respondent is charged with intentional misrepresentations. However, should the evidence at trial demonstrate that respondent made misrepresentations as a result of gross negligence, respondent must still be found culpable of violating section 6106 because misrepresentation through gross negligence is a lesser included offense of intentional misrepresentation.

COUNT FIVE

Case No. 22-O-15343
Business and Professions Code section 6106
[Moral Turpitude - Misrepresentations]

18. Paragraphs 2 through 7, 14, and 16 above are incorporated by reference.

19. On or about June 23, 2023, respondent made multiple false and misleading statements to the State Bar in writing regarding making court appearances and performing work on Ms. Bidinger's criminal DUI case when respondent knew these statements were false and misleading because respondent never attended court on Ms. Bidinger's behalf and never performed any services for Ms. Bindinger on her DUI case. The false and misleading statements included the following:

a. On February 15, 2022, respondent personally traveled from Altadena to Airport Courthouse and appeared in former Department 141 for Ms. Bidinger's arraignment, when in fact respondent knew that he did not attend court on February 15, 2022 on Ms. Bidinger's behalf;

b. After appearing in court and waiting all day for the case filing, on or about 2:15 p.m., a Deputy District Attorney advised respondent that although the D.A.'s Office

intended to file a case against Ms. Bidinger, that the filing would not be ready that day, when in fact respondent knew that he did not attend court on February 15, 2022 on Ms. Bidinger's behalf;

c. In or about late March 2022, respondent again traveled from Altadena to Airport Courthouse for a new arraignment date, but was again notified that no case had been filed and that the D.A.'s Office would notify Ms. Bidinger and respondent by letter of a formal filing and court date, when in fact respondent knew that he did not attend court in or around late March 2022 on Ms. Bidinger's behalf; and

d. In or about April 2022, respondent met with a colleague in the D.A's Office about Ms. Bidinger's unfiled matter and reviewed the discovery with that Deputy District Attorney, when in fact respondent knew that he never discussed Ms. Bidinger's DUI matter with a colleague in the D.A.'s Office and never performed any services for Ms. Bindinger on her DUI case.

20. By the acts described in paragraph 19, respondent committed acts involving moral turpitude, dishonesty, and corruption in willful violation of Business and Professions Code section 6106.

21. A violation of section 6106 may result from intentional conduct or grossly negligent conduct. Respondent is charged with intentional misrepresentations. However, should the evidence at trial demonstrate that respondent made misrepresentations as a result of gross negligence, respondent must still be found culpable of violating section 6106 because misrepresentation through gross negligence is a lesser included offense of intentional misrepresentation.

COUNT SIX

Case No. 22-O-15343
Business and Professions Code section 6106
[Moral Turpitude - Misrepresentations]

22. Paragraphs 2 through 7, 14, 16, and 19 above are incorporated by reference.

23. On or about August 13, 2023, respondent made multiple false and misleading statements to the State Bar in writing, including:

a. That Michele Bidinger did not contact respondent until on or about January 10-18, 2022, when in fact respondent knew this statement was false and misleading because he began communicating with Ms. Bidinger via text on December 16, 2021 after Gary Kurtz, a friend and colleague, referred Ms. Bidinger's case to respondent;

b. That respondent declined to represent Ms. Bidinger in her DMV Administrative Per Se hearing, when in fact respondent knew this statement was false and misleading because on or about December 20, 2021, he expressly stated to Ms. Bidinger in writing that he would contact the DMV on her behalf to stay the automatic suspension on Ms. Bidinger's license, request a hearing, conduct discovery, and handle her DMV hearing;

c. That due to his assistant sending him an electronic calendar invitation for Ms. Bidinger's February 15, 2022 court appearance, respondent could only infer that Ms. Bidinger contacted his law firm sometime between January 10 and January 18, 2022, and relayed this information to his staff, which was then transmitted to respondent, when in fact respondent knew this statement was false and misleading because he began communicating directly with Ms. Bidinger via text on December 16, 2021 after Gary Kurtz, a friend and colleague, referred Ms. Bidinger's case to him, and that he had already agreed to perform legal services for her when on or about December 20, 2021, he offered to contact the DMV on her behalf to stay the automatic suspension on Ms. Bidinger's license, request a hearing, conduct discovery, and handle her DMV hearing; and

d. That on February 14, 2022, respondent notified his assistant that he needed emergency dental work, and that he asked his assistant to place Ms. Bidinger's case on second call for 1:30 PM because he would be unable to appear at 8:30 AM, when

in fact respondent knew this statement was false and misleading because he did not visit the dentist on February 15, 2022.

Respondent thereby committed an act or acts involving moral turpitude, dishonesty or corruption in willful violation of Business and Professions Code section 6106.

24. By the acts described in paragraph 23, respondent committed an act or acts involving moral turpitude, dishonesty or corruption in willful violation of Business and Professions Code section 6106.

25. A violation of section 6106 may result from intentional conduct or grossly negligent conduct. Respondent is charged with committing intentional misrepresentation. However, should the evidence at trial demonstrate that respondent committed misrepresentation as a result of gross negligence, respondent must still be found culpable of violating section 6106 because misrepresentation through gross negligence is a lesser included offense of intentional misrepresentation.

COUNT SEVEN

Case No. 22-O-15343
Rules of Professional Conduct, rule 1.4(a)(3)
[Failure to Comply with Reasonable Requests for Information and Documents]

26. Paragraphs 2 through 7, 14, 16, 19, and 23 above are incorporated by reference.

27. On June 20, 2022, June 24, 2022, and June 28, 2022, respondent's client, Michele Bidinger made requests for a copy of her file and all work done on her criminal and administrative legal matters. Respondent failed to promptly comply with Ms. Bidinger's reasonable requests when necessary to keep her so informed by failing to ever provide Ms. Bidinger with a copy of her case file or any work performed on her legal matters. Thus, respondent intentionally, recklessly, grossly negligently, or repeatedly failed to comply with reasonable requests for information and copies of significant documents in willful violation of the Rules of Professional Conduct, rule 1.4(a)(3).

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COUNT EIGHT

Case No. 23-O-27352
Business and Professions Code section 6068(a)
[Failure to Comply with Laws – Unauthorized Practice of Law]

28. In State Bar Court Case No. 16-O-13109 (16-O-16440) (Supreme Court order S259099), effective February 8, 2020, discipline was imposed as to respondent consisting of a one-year stayed suspension and two-year probation with conditions, including a 120-day actual suspension.

29. Respondent's actual suspension began on February 8, 2020 and ended on April 20, 2021 and respondent had actual knowledge of his suspension.

30. Between on or around March 2020 through June 2020, while serving his 120-day actual suspension, respondent held himself out as entitled to practice law when respondent was not an active member of the State Bar by communicating with a former client, Toni Chaja-Chapman ("Ms. Chapman") via email on multiple occasions including March 21, 2020, June 15, 2020, June 17, 2020, and June 26, 2020. In the emails, which were sent from respondent's law firm email address and were signed as "Freddy Sayegh, Esq., The Foxx Firm, Inc.," respondent implied that he was personally negotiating with opposing counsel to settling a costs judgment that had been issued against Ms. Chapman in a prior case as well as removing a lien that had been placed on Ms. Chapman's property. Respondent thereby held himself out as entitled to practice law at a time when he was not entitled to do so, in willful violation of Business and Professions Code sections 6125 and 6126, and thereby willfully violated Business and Professions Code section 6068(a).

COUNT NINE

Case No. 23-O-27352
Business and Professions Code section 6106
[Moral Turpitude – Unauthorized Practice of Law]

31. Paragraphs 28 through 30 above are incorporated by reference.

32. Between on or around March 2020 through June 2020, while serving his 120-day actual suspension, respondent held himself out as entitled to practice law when respondent was

not an active member of the State Bar by communicating with Ms. Chapman via email on multiple occasions including March 21, 2020, June 15, 220, June 17, 2020, and June 26, 2020 about a lien that had been placed on her home based on an unpaid costs judgment in *Chapman v. Target*. In the emails, which were sent from respondent's law firm email address and were signed as "Freddy Sayegh, Esq., The Foxx Firm, Inc.," respondent falsely implied that he was personally negotiating with opposing counsel and settling the costs judgment issued against Ms. Chapman as well as removing a lien that had been placed on Ms. Chapman's property. Respondent thereby held himself out as entitled to practice law at a time when he knew was not entitled to do so and thereby committed an act involving moral turpitude, dishonesty and corruption in willful violation of Business and Professions Code sections 6106.

33. A violation of section 6106 may result from intentional conduct or grossly negligent conduct. Respondent is charged with knowingly holding himself out as entitled to practice law when respondent knew he was not an active member of the State Bar. However, should the evidence at trial demonstrate that respondent's holding himself out as entitled to practice law when respondent was grossly negligent in not knowing that he was not an active member of the State Bar, respondent must still be found culpable of violating section 6106 because holding himself out as entitled to practice law when respondent was grossly negligent in not knowing that he was not an active member of the State Bar is a lesser included offense.

COUNT TEN

Case No. 23-O-27352
Business and Professions Code section 6068(k)
[Failure to Comply with Conditions of Probation]

34. Paragraphs 2 though 7, 14, and 28 through 30 above are incorporated by reference.

35. On or about April 7, 2020, respondent stated in writing to the Office of Probation on a quarterly report form that that during the reporting period of February 8, 2020 through March 31, 2020, he complied with all provisions of the California State Bar Act and Rules of Professional Conduct when respondent knew that statement was false and misleading because on March 21,

2020, respondent had communicated with Ms. Chapman, a former client, and held himself out as entitled to practice law during a period of time when he was actually suspended for 120 days.

36. On or about July 2, 2020, respondent stated in writing to Office of Probation on a quarterly report form that that during the reporting period of April 1, 2020 through June 30, 2020, he complied with all provisions of the California State Bar Act and Rules of Professional Conduct when respondent knew that statement was false and misleading because on June 15, 2020, June 17, 2020, and June 26, 2020, respondent communicated with Ms. Chapman, a former client, and held himself out as entitled to practice law during a period of time when he was actually suspended for 120 days.

37. On or about February 14, 2022, respondent stated in writing to Office of Probation on a quarterly report form that that during the reporting period of January 1, 2022 through February 8, 2022, he complied with all provisions of the California State Bar Act and Rules of Professional Conduct when respondent knew that statement was false and misleading because on February 4, 2022, respondent received $3,000 as an advanced fixed fee from Michele Bidinger to handle legal matters associate with a DUI arrest, and not only failed to deposit the funds into a client trust account in violation of Rules of Professional Conduct, rule 1.15(a), he failed to provide written notice to Ms. Bidinger pursuant to Rules of Profession Conduct, rule 1.15(b)(1) that would have entitled respondent to deposit the client funds into a non-client trust account.

38. Respondent failed to comply with conditions attached to respondent's disciplinary probation in State Bar Case no. 16-O-13109 (16-O-16440) as follows, in willful violation of Business and Professions Code section 6068(k):

a. By holding himself out to Ms. Chapman on or about March 21, 2020 and between on or about June 15, 2020 through on or about June 26, 2020 as entitled to practice law while serving a 120-day actual suspension, which was a violation of Business and Professions Code sections 6106, 6125, and 6126, and 6068(a);

b. By placing client funds in a non-client trust account on February 4, 2022 without giving proper written disclosure to Ms. Bidinger, which were violations of Rules of Professional Conduct, rules 1.15(a) and 1.15(b)(1); and

c. By making misrepresentations on quarterly reports submitted on April 7, 2020, July 2, 2020, and February 14, 2022, which were violations of Business and Professions Code section 6106.

COUNT ELEVEN

Case No. 23-O-27352
Business and Professions Code section 6106
[Moral Turpitude - Misrepresentations]

39. Paragraphs 28 through 30 and 35 though 37 above are incorporated by reference.

40. On April 7, 2020, respondent stated in writing to the Office of Probation on a quarterly report form that that during the reporting period of February 8, 2020 through March 31, 2020, he complied with all provisions of the California State Bar Act and Rules of Professional Conduct when respondent knew that statement was false and misleading because on March 21, 2020, respondent had communicated with Ms. Chapman, a former client, and held himself out as entitled to practice law during a period of time when he was actually suspended for 120 days. Respondent thereby committed an act involving moral turpitude, dishonesty and corruption in willful violation of Business and Professions Code section 6106.

41. On or about July 2, 2020, respondent stated in writing to Office of Probation on a quarterly report form that that during the reporting period of April 1, 2020 through June 30, 2020, he complied with all provisions of the California State Bar Act and Rules of Professional Conduct when respondent knew that statement was false and misleading because on June 15, 220, June 17, 2020, and June 26, 2020, respondent had communicated with Ms. Chapman, a former client, and held himself out as entitled to practice law during a period of time when he was actually suspended for 120 days.

42. On or about February 14, 2022, respondent stated in writing to Office of Probation on a quarterly report form that that during the reporting period of January 1, 2022 through February

8, 2022, he complied with all provisions of the California State Bar Act and Rules of Professional Conduct when respondent knew that statement was false and misleading because on February 4, 2022, respondent received $3,000 as an advanced fixed fee from Michele Bidinger to handle legal matters associate with a DUI arrest, and not only failed to deposit the funds into a client trust account in violation of Rules of Professional Conduct, rule 1.15(a), he failed to provide written notice to Ms. Bidinger pursuant to Rules of Profession Conduct, rule 1.15(b)(1) that would have entitled respondent to deposit the client funds into a non-client trust account.

43. By committing the acts described in paragraphs 41 through 43 above, respondent thereby committed an act involving moral turpitude, dishonesty, and corruption in willful violation of Business and Professions Code section 6106.

44. A violation of section 6106 may result from intentional conduct or grossly negligent conduct. Respondent is charged with committing intentional misrepresentation. However, should the evidence at trial demonstrate that respondent committed misrepresentation as a result of gross negligence, respondent must still be found culpable of violating section 6106 because misrepresentation through gross negligence is a lesser included offense of intentional misrepresentation.

**NOTICE - INACTIVE ENROLLMENT!**

**YOU ARE HEREBY FURTHER NOTIFIED THAT IF THE STATE BAR COURT FINDS, PURSUANT TO BUSINESS AND PROFESSIONS CODE SECTION 6007(c), THAT YOUR CONDUCT POSES A SUBSTANTIAL THREAT OF HARM TO THE INTERESTS OF YOUR CLIENTS OR TO THE PUBLIC, YOU MAY BE INVOLUNTARILY ENROLLED AS AN INACTIVE ATTORNEY OF THE STATE BAR. YOUR INACTIVE ENROLLMENT WOULD BE IN ADDITION TO ANY DISCIPLINE RECOMMENDED BY THE COURT.**

**NOTICE - COST ASSESSMENT!**

**IN THE EVENT THESE PROCEDURES RESULT IN PUBLIC DISCIPLINE, YOU MAY BE SUBJECT TO THE PAYMENT OF COSTS INCURRED BY THE STATE BAR IN THE INVESTIGATION, HEARING AND REVIEW OF THIS MATTER PURSUANT TO BUSINESS AND PROFESSIONS CODE SECTION 6086.10.**

**NOTICE – MONETARY SANCTION!**

**IN THE EVENT THIS MATTER RESULTS IN ACTUAL SUSPENSION, DISBARMENT, OR RESIGNATION WITH CHARGES PENDING, YOU MAY BE SUBJECT TO THE PAYMENT OF A MONETARY SANCTION NOT TO EXCEED $5,000 FOR EACH VIOLATION, TO A MAXIMUM OF $50,000 PER DISCIPLINARY ORDER, PURSUANT TO BUSINESS AND PROFESSIONS CODE SECTION 6086.13. SEE RULE 5.137, RULES OF PROCEDURE OF THE STATE BAR OF CALIFORNIA.**

Respectfully submitted,

THE STATE BAR OF CALIFORNIA
OFFICE OF CHIEF TRIAL COUNSEL

DATED: March 28, 2024

By: _____
Scott D. Karpf
Trial Counsel

# DECLARATION OF SERVICE

CASE NUMBER(s): **OCTC Case No. 22-O-15343; 23-O-27352**

I, the undersigned, am over the age of eighteen (18) years and not a party to the within action, whose business address and place of employment is the State Bar of California, 845 S. Figueroa Street, Los Angeles, California 90017, declare that:

- on the date shown below, I caused to be served a true copy of the within document described as follows:

## NOTICE OF DISCIPLINARY CHARGES

☐ **By U.S. First-Class Mail: (CCP §§ 1013 and 1013(a))**

☒ **By U.S. Certified Mail: (CCP §§ 1013 and 1013(a))**

- in accordance with the practice of the State Bar of California for collection and processing of mail, I deposited or placed for collection and mailing in the City and County
- of Los Angeles.

☐ **By Overnight Delivery: (CCP §§ 1013(c) and 1013(d))**

- I am readily familiar with the State Bar of California's practice for collection and processing of correspondence for overnight delivery by the United Parcel Service ('UPS').

☐ **By Fax Transmission: (CCP §§ 1013(e) and 1013(f))**

Based on agreement of the parties to accept service by fax transmission, I faxed the documents to the persons at the fax numbers listed herein below. No error was reported by the fax machine that I used. The original record of the fax transmission is retained on file and available upon request.

☐ **By Electronic Service: (CCP § 1010.6)**

Based on a court order or an agreement of the parties to accept service by electronic transmission, I caused the documents to be sent to the person(s) at the electronic addresses listed herein below. I did not receive, within a reasonable time after the transmission, any electronic message or other indication that the transmission was unsuccessful.

☐ *(for U.S. First-Class Mail)* in a sealed envelope placed for collection and mailing at Los Angeles, addressed to: *(see below)*

☒ *(for Certified Mail)* in a sealed envelope placed for collection and mailing as certified mail, return receipt requested,
Article No.: **SEE BELOW** at Los Angeles, addressed to: *(see below)*

☐ *(for Overnight Delivery)* together with a copy of this declaration, in an envelope, or package designated by UPS,
Tracking No.: _____ addressed to: *(see below)*

| Person Served | |
|---|---|
| Samuel Bellicini<br>Samuel C. Bellicini, Lawyer<br>3001 Bridgeway #331<br>Sausalito, CA 94965<br><br>**ARTICLE NO.**<br>**9414 7266 9904 2171 4060 75** | Fahed Sayegh<br>THE FOXX FIRM, INC.<br>407 E Woodbury Rd<br>Altadena, CA 91001-2923<br><br>**ARTICLE NO.**<br>**9414 7266 9904 2171 4060 99** |

I am readily familiar with the State Bar of California's practice for collection and processing of correspondence for mailing with the United States Postal Service, and overnight delivery by the United Parcel Service ('UPS'). In the ordinary course of the State Bar of California's practice, correspondence collected and processed by the State Bar of California would be deposited with the United States Postal Service that same day, and for overnight delivery, deposited with delivery fees paid or provided for, with UPS that same day.

I am aware that on motion of the party served, service is presumed invalid if postal cancellation date or postage meter date on the envelope or package is more than one day after date of deposit for mailing contained in the affidavit.

I declare under penalty of perjury, under the laws of the State of California, that the foregoing is true and correct.

DATED: March 29, 2024

SIGNED: _____
Elizabeth Zuniga
Declarant